

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

July 20, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

Here, Defendant does not dispute that Plaintiff is the prevailing party under the Song-Beverly Act, as reflected in the Acceptance of Offer to Compromise. (ROA 38.)

To recover attorney's fees, a prevailing party bears the burden of demonstrating that the fees were: (1) allowable; (2) reasonably necessary to the conduct of the litigation; and (3) reasonable in amount. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998.) The lodestar method is applicable to calculating attorney's fees under the Song-Beverly Consumer Warranty Act. (*Id.* at p. 997.) An experienced trial judge is the best judge of the value of professional services rendered in his or her court. (*Ibid.*)

The trial court's analysis "begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [citation omitted].) "In setting a reasonable rate, the court may consider various factors beyond the applicable legal community, such as the attorney's skill and experience, the nature of the work performed, the relevant area of expertise, and the attorney's customary billing rates. (*Hoglund v. Sierra Nevada Memorial-Miners Hospital* (2024) 102 Cal.App.5th 56, 82, citing *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632–633.) As to the reasonableness of the hours, "trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) "In determining a fee's reasonableness, the court may also consider whether the motion itself is reasonable, both in terms of (1) the amount of fees requested and (2) the credibility of the supporting evidence." (*Guillory v. Hill* (2019) 36 Cal.App.5th 802, 811.) The court may make a downward adjustment if the billing entries are vague, "blockbilled," or unnecessary. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 441.)

Here, the Court determines that the hourly rates of Plaintiff's counsel of record are reasonable, and that the claimed fees are also reasonable. The Court declines to make the reductions proposed by Defendant in its opposition. (ROA 61.)

However, the Court declines to award a multiplier. The party seeking a fee enhancement bears the burden of showing why an enhancement

is appropriate. (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1138.) The Court is not persuaded that Plaintiff's requested enhancement is warranted.

In sum, the Court grants the motion and awards \$39,807 in reasonable attorneys' fees. Plaintiff is also entitled to recover \$6,826.60 in costs and expenses (which will be discussed, below, in connection with Defendant's motion to tax or strike costs).

Defendant General Motors LLC's Motion to Strike or Tax Counsel's Memorandum of Costs is granted in part and denied in part.

The Court grants the motion, in part, and taxes \$40.54 in costs. The remainder of the motion is denied.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Code of Civil Procedure section 1033 enumerates allowable costs and costs which are not allowable, and restricts allowable costs to those reasonably necessary to the conduct of the litigation." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Where items on the costs bill appear to be proper charges, "the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant[.]" (*Id.* at p. 131.) The burden is on the objecting party to show that costs are unnecessary or unreasonable. (*Litt v. Eisenhower Medical Center* (2015) 237 Cal.App.4th 1217, 1224.)

Here, Defendant seeks to tax:

- Category [1]: \$398.06 in filing fees associated with "One Legal Fees" "eFiling Charge(s)" and "Convenience Fee(s);
- Category [4]: "\$5,460.76" in "Appearance Fees" and what is presumably "Deposition costs" associated with third-party dealership depositions; and,
- Category [5] \$598.40 in process-server fees associated with third-party discovery.

The Court taxes \$40.54 in "convenience fees." CCP section 1033.5, subdivision (a)(14), generally allows for: "Fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of document." However, the convenience fees are not for electronic filing. They were incurred so that Plaintiff's counsel could "pay invoices by credit card." But, the invoices expressly that that such fees can be avoided by paying "via ACH." These "convenience fees" are

		not “reasonably necessary to the conduct of the litigation,” they are—as stated in their name—“merely convenient” to Plaintiff’s preferred method of payment. (Code Civ. Proc., § 1033.5, subd. (c)(2) [“Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation”].) The remainder of the motion is denied because, based on the allegations in the Complaint, it is reasonable to expect Plaintiff to depose the individuals who worked on the repairs of the subject vehicle, and allegedly were not able to repair it. (See Compl. at ¶ 12 [“On each occasion Plaintiff delivered the Subject Vehicle for repair to Defendant or its authorized repair facility(s), the vehicle was returned to Plaintiff without properly repairing the nonconformity(s)”].) Accordingly, Plaintiff should be able to recover the (stated) costs of \$3,669.48 for “deposition costs” and \$598.40 for “service of process.” In sum, as stated above (in connection with the fee motion), Plaintiff is entitled to recover \$6,826.60 in costs and expenses. Plaintiff shall give notice of the rulings. Order to Show Cause re: Dismissal on Settled Case Continued to 8/31/26 at 9:00 a.m.
4	Chacko vs. Frith Earson 2023-01362003	Motion for Leave to Allow Independent Medical Examination Motion for Protective Order Defendants Brandon Todd Frith Earsom’s and Cunningham-Davis Corp.’s motion for leave to conduct an additional independent medical examination of Plaintiff Sheba Chacko is granted. The defendant has an unqualified right to demand one physical examination in a suit for personal injuries. (<i>Pratt v. Union Pacific R. Co.</i> (2008) 168 Cal. App. 4th 165, 181; Code Civ. Proc. § 2032.220(a).) In order to conduct a second physical examination, leave of court is required. Good cause must be shown. (Code Civ. Proc., §§ 2032.310, 2032.320.)

		Here, Plaintiff previously underwent a neurosurgical independent medical examination with Dr. Paul Kaloostian on 9/25/24. Defendants state that Plaintiff's cervical and lumbar spine were evaluated, but her TMJ complaints were not. (He Decl. ¶ 5). Since that time, in November 2025, Plaintiff received a surgical recommendation for a C5-6 total disc arthroplasty. (He Decl. ¶ 6, Ex.1). Plaintiff has designated an orthopedic surgeon, Dr. Jeremy Scott Smith, as an expert, while Defendants currently have no orthopedic surgeon designated (He Decl. ¶ 7). Given the evidence that Plaintiff's condition has progressed, the Court finds that there is good cause to allow an additional 60-90 minute independent medical examination of Plaintiff by Defendant's expert Dr. Kahmann under the parameters set forth in Defendant's motion. In addition to the TMJ complaints that were not previously evaluated, Defendants' expert shall be permitted to examine Plaintiffs' cervical and lumbar spine in order to evaluate her progressing condition and the recommendation for surgery. Plaintiff's motion for a protective order prohibiting Defendant from conducting any additional independent medical examinations of Plaintiff's cervical spine and lumbar spine is accordingly denied as moot based on the above. Defendants shall give notice.
5	Costa vs. FCA US, LLC. 2025-01460593	Motion to Compel Production Plaintiffs Conrad Costa and Monique Costa's Motion to Compel Initial Disclosures Pursuant to CCP § 871.26 and Request for Monetary Sanctions is denied. Plaintiffs move under CCP section 871.26 for an order compelling Defendant to produce all documents required under subdivisions (h)(6) through (h)(10), (h)(12), and (h)(13), and for \$2,500 in monetary sanctions against Defendant and its counsel of record. The Court denies the motion for two reasons. First, CCP section 871.26 does not provide any authority for a motion to compel production for a violation of the statute. In enacting the statute, the Legislature sought to curb discovery motions, not to provide an additional basis for discovery disputes. (See California Bill Analysis, A.B. 1755 Assem., 8/30/2024 ["this bill adopts a set of

		streamlined discovery processes to ensure that the information most relevant to a lemon law case is disclosed early in the litigation process <i>and without the need to argue costly discovery disputes before the court</i>”] [emphasis added].) In order “to ensure that attorneys faithfully adhere to these new discovery rules, the bill <i>proposes sanctions</i> on attorneys who violate the provisions of this bill.” The statute does not say anything about a party bringing a motion to compel production in order to enforce compliance with the statute. Rather, the remedy for non-compliance with the production of initial disclosures is monetary sanctions. (Code Civ. Proc., § 871.26, subd. (j)(4).) For “repeated noncompliance with subdivision (b), (c), or (d), a court may order evidentiary sanctions. (Code Civ. Proc., § 871.26, subd. (j)(4).) Second, Plaintiffs have not shown that the litany of documents that Defendant has purportedly failed to produce are encompassed by section 871.26, subdivisions (h)(6) through (h)(10), (h)(12), and (h)(13). Section 871.26 is generally limited to materials that are “reasonably related to the nonconformities pertaining to the motor vehicle.” Based on a reading of the FAC, it is not clear that Plaintiffs are alleging the “missing” materials are reasonably related to nonconformities in the subject vehicle that Defendant or its agents were unable to conform/repair. The only exception is the “Warranty Administration Manual,” which Defendant offers to produce “subject to the entry of a protective order.” (Opp’n at p. 1.) Plaintiffs are correct that section 871.26 does not require them to enter into a protective order. Nevertheless, monetary sanctions are only warranted if Defendant fails to show good cause. (Code Civ. Proc., § 871.26, subd. (j).) Given the sensitive nature of the manual, the Court finds there was good cause for Defendant to request a stipulation for protective order for the production of the manual. Aside from the lack of a statutory mandate, Plaintiffs have not given any reason why this request is unreasonable. The motion is denied in its entirety. Defendant shall give notice of the ruling.
6	Doe #1 P.M. vs. Roe 1 2022-01299916	Motion for Summary Judgment and/or Adjudication The Court grants Defendant The General Council of the Assemblies of God’s (“General Council) Motion for summary judgment, or alternatively summary adjudication of Plaintiff John Doe #1 P.M.’s First Amended Complaint (FAC).

Evidentiary Objections

The Court overrules objection nos. 1-16 and 18-19. The Court sustains objection no. 17.

Continuance

In opposition, Plaintiff's Counsel asks for a continuance of the hearing on this Motion to conduct the depositions of the person most qualified of Defendant Legacy Community Church and Defendant Assemblies of God Northern California and Nevada District Council. (West Decl., ¶¶5-15.) Plaintiff's Counsel testifies that despite diligence, this essential discovery remains outstanding through no fault of Plaintiff. (See eg. West Decl., ¶4.)

An application to continue a summary judgment motion to obtain necessary discovery must be made by a declaration or an affidavit filed in conjunction with a timely opposition to the motion, or by an ex parte motion at any time on or before the date on which the opposition to the motion is due. (CCP § 437c(h); *Cooksey v Alexakis* (2004) 123 Cal.App.4th 246, 255, 259 (ex parte application filed on hearing date is not timely).)

There is a split of authority whether the court has discretion to deny a continuance based on the party's lack of diligence in discovering facts earlier. A number of courts have held that, if the party seeking a continuance submits an affidavit demonstrating that facts essential to justify opposition may exist, the court's discretion to deny a continuance on this ground is "strictly limited." (*See, e.g., Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 398—"The issue of discovery diligence is not mentioned in section 437c, subdivision (h), which raises obvious doubts about its relevance"; *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 519.)

But other courts have held that because the statute requires the party seeking a continuance to state why the discovery needed to oppose the motion could not have completed sooner, and also says the court "may make any other order as may be just," the court can consider diligence to deny relief. (*See Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1038, & fn. 7 (noting that "majority of courts have held that lack of diligence may be a ground for denying a request for a continuance") (internal quotes omitted); *Braganza v. Albertson's LLC* (2021) 67 Cal.App.5th 144, 151-157 (collecting cases on split)—party seeking continuance must show why discovery needed to oppose motion could not have been completed sooner, and moving party not required to show it would be prejudiced by continuance.)

Bahl v. Bank of America, supra, 89 Cal.App.4th at 398 is a 4/3 case. Thus, the threshold question presented by a section 437c(h) request is: Does the supporting affidavit show “that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented”? (§ 437c(h).) If the affidavit makes such a showing, the statute requires the trial court to grant a continuance or deny the summary judgment motion. (§ 437c(h).)

But note, where a party's lack of diligence results in having insufficient information *to know* if facts essential to justify opposition may exist, and the party is therefore unable to provide the requisite affidavit under CCP § 437c(h), a continuance may be denied. (*See Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 398.)

Here, even if diligence were not considered, Plaintiff has already obtained a continuance of this Motion. This Motion was filed on 1/22/26 and set for hearing on 4/20/26. On 4/9/26, the parties stipulated and the Court ordered that the Motion be continued so Plaintiff could conduct necessary discovery to properly oppose the Motion. (ROA 236.) The continued the hearing for three months to July 20, 2026. (*Id.*)

A judge may deny a continuance when the judge has granted previous continuances to the party opposing summary judgment. (*Roth v Rhodes* (1994) 25 CA4th 530, 547 (CCP § 437c(h) does not provide for unlimited continuances).)

Having already provided a continuance to conduct deposition, the Court denies Plaintiff's request for a second continuance.

Legal Standard

“[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (*Ibid.*) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint.

(*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Plaintiff has five remaining claims against Defendant General Council: (1) Sexual Abuse of a Minor (First Cause of Action), (2) Intentional Infliction of Emotional Distress (Second Cause of Action), (3) Negligence (Fourth Cause of Action), (4) Negligent Supervision (Fifth Cause of Action), and (5) Battery (Seventh Cause of Action). All the claims are based on the alleged sexual abuse by “David.” (Separate Statement of Undisputed Fact 35; FAC, ¶ 5.)

The Court notes that Defendant’s Separate Statement makes the same repeated claims for 567 facts. Like Plaintiff, this Court refers to the first appearance of the claims for brevity.

Based on the FAC, these claims are brought against Defendants under a theory of respondeat superior/ ratification, or alternatively direct negligence.

Direct Negligence theory: Defendant has met its burden to show that it had no special relationship with Plaintiff and owed no duty of care and breached no duty of care.

According to Plaintiff’s discovery responses, Plaintiff alleges a sexual assault occurred by “David” while Plaintiff participated in this Church’s youth group “Royal Rangers.” “David” was allegedly a

leader in this Royal Rangers group. (SSUF 18.) Plaintiff did not tell anyone about the alleged abuse at the time. (SSUF 33.)

Defendant General Council had no relationship with Plaintiff. (SSUF 13-14; Kesler Decl., ¶¶ 24-25; *See Barenborg v. Sigma Alpha Epsilon Fraternity* (2019) 33 Cal.App.5th 70; *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) Plaintiff was not a member or attendee of Defendant General Council. Parishioners attend and/or become members of an individual church, not of the General Council. Defendant General Council had no control or oversight over Plaintiff. (*Id.*)

Plaintiff has not met his burden to show a triable issue of material fact. (*See Brown v. Ransweiler* (2009) 171 Cal.App.4th 516, 525-26 (issue of fact cannot be created by “speculation, conjecture, imagination or guess work,” and is not raised by “cryptic, broadly phrased, and conclusory assertions, or mere possibilities.”); *Horn v. Cushman & Wakefield W., Inc.* (1999) 72 Cal.App.4th 798, 805 (to defeat motion plaintiff must show specific facts and cannot rely on allegations in pleadings).)

Respondent Superior theory: Defendant has met its burden to show that it did not employ, supervise, or have control over “David” at Royal Rangers.

Defendant General Council has shown that it had no relationship with employees, staff, teachers and volunteers of the local church. The employees and staff members of local churches are not employed by Defendant General Council. (SSUF No. 17.) This “David” (the alleged wrongdoer) was never an employee, agent, officer or volunteer of Defendant General Council. (SSUF 25, 28.)

Defendant General Council is a non-profit, religious corporation located in Springfield, Missouri. It is a cooperative fellowship of churches and credentialed ministers that voluntarily affiliate with it. Unlike some religious organizations, it is not hierarchical. One of the basic religious tenets of Defendant General Council is that the local church is autonomous and sovereign and Defendant General Council is prohibited from interfering with the local church, as set forth in its Constitution and Bylaws. (SSUF 30; Kesler Decl., ¶¶ 12-15.)

The individual churches that are affiliated with Defendant General Council are self governing, sovereign, and autonomous. As stated in the Constitution and Bylaws: Each local assembly has the right of self-government under Jesus Christ, its living Head, ... The fact that a local assembly is affiliated in the association of a District Council or

The General Council of the Assemblies of God shall in no wise destroy its rights as above stated or interfere with its sovereignty. (See Kesler Decl., ¶ 12 and Exhibit 1, p. 104, Art. XII; SSUF 8.)

Defendant General Council has a division called Royal Rangers, which provides resources if a local church chooses to have such a program, and if the church wants to use such materials. If a church decides it has a Royal Rangers program, that is their program. There is no corporate or operational connection between Plaintiff's church's Royal Rangers program and Defendant General Council's Royal Rangers division. The local church – a separate, independent entity with its own Board, officers, employees and volunteers, decides whether to have a Royal Rangers program, and if so, staffs it, runs it, operates it as it deems fit. (Kesler Decl., ¶¶ 4, 15, 17-29; 7/25/25 Kesler Depo., at 10:12 11:25, 15:5-11, 16:11-17; 5/14/26 Kesler Depo., at 33:2-34:24, 37:4-15.)

Defendant General Council's religious beliefs about church governance, as reflected in its Constitutions and Bylaws (Exhibit 1), prohibit it from interfering with a local church's hiring and supervision of employees, staff, teachers and volunteers, including any Royal Rangers program the church might choose to have. (SSUF 22, 29-31. Kesler Decl., ¶¶ 15-20.)

Indeed, it is impossible for Defendant General Council to provide day-to-day oversight of the activities of the local churches, as there are over 7,300 churches in the United States that are affiliated members of Defendant General Council. (SSUF 9.) Those 7,300 churches have 2.5 million church members and adherents. (SSUF 11.) There are over 6,200 churches with a Royal Rangers program. (SSUF 19.)

Again, Defendant General Council is primarily a resource for curriculum and related materials made available to churches on various programs, including Royal Rangers. Each local church makes its own decisions regarding what programs it wants to have, and whether to utilize any of the materials Defendant General Council has available. The local church runs and operates its own programs, including who at the local church is involved in the programs. Defendant General Council has no involvement or oversight over the volunteers or staffing by the local church of the local church's programs, such as Royal Rangers. (SSUF 22, 29-31.)

Whether a local church decides to purchase any of it, or use any of it, or to what extent, is up to the local church. In addition, the material could be purchased by non affiliated churches. (Kesler Decl., ¶¶ 4, 19,

21; 5/14/26 Kesler Depo., pp. 33:2-34:24. See also Exh. G to West Decl.)

Plaintiff has not met his burden to show a triable issue of material fact.

Ratification theory: Defendant has met its burden to show that it did not ratify any of “David’s” conduct.

“ ‘As an alternate theory to respondeat superior, an employer may be liable for an employee's act where the employer either authorized the tortious act or subsequently ratified an originally unauthorized tort. [Citations.] The failure to discharge an employee who has committed misconduct may be evidence of ratification. [Citation.] The theory of ratification is generally applied where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery. [Citations.] Whether an employer has ratified an employee's conduct is generally a factual question. [Citation.]’ [Citations.]” (*C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110–1111.) “A principal may be liable when it ratifies an originally unauthorized tort. [Citations.] And generally, the ratification relates back to the time the tortious act occurred. [Citations.] As noted, ratification may occur when an employer learns of misconduct and fails to discharge an agent or employee. [Citations.]” (*Id.* at p. 1111; see also *Ratcliff v. The Roman Catholic Archbishop of Los Angeles* (2022) 79 Cal.App.5th 982, 1002.)

Ratification is not itself a tort, but a doctrine that holds the ratifying party liable for the tort committed by another party. It is the voluntary election by a party to adopt, as its own, an act purportedly done on its behalf by another, the effect of which is to treat the act as originally authorized by the ratifier. (*Lebrun v. CBS Television Studios, Inc.* (2021) 68 Cal.App.5th 199, 208–209.) Ratification is not an element of a claim; it is a choice to adopt someone's act as one's own. Evidence of the ratification may come in many forms, for example where an employer fails to terminate, investigate, or respond to charges that an employee has committed an intentional tort. (*Ratcliff v. The Roman Catholic Archbishop of Los Angeles* (2022) 79 Cal.App.5th 982, 1002–1003; see also *C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110–1111.)

Here, Plaintiff alleges that “Defendants had actual knowledge that Perpetrator(s) had sexually harassed and abused minors.” (FAC, ¶ 38). Plaintiff further alleges that Defendants collectively “turned a blind eye and still allowed Perpetrator(s) to work for Defendants, and did nothing to prevent any further abuse from occurring.” (FAC, ¶ 38.)

		But Defendant General Council has shown that it had no notice of any wrongdoing or interaction or control over the alleged wrongdoer. The first notice Defendant General Council ever had of alleged abuse of Plaintiff was when it was served with the FAC in this case on September 16, 2024. Even the FAC did not identify the alleged wrongdoer. In written discovery responses in 2025, Plaintiff only referred to the wrongdoer as “David.” The undisputed facts show Defendant General Council had no knowledge or notice of any wrongdoing. (SSUF 33, 34.) Plaintiff has not met his burden to show a triable issue of material fact. Thus, the Motion is granted. Defendant is ordered to serve notice.
7	Farnum vs. Big Dental Group 2022-01282420	Motion – Other The motion by Plaintiff Andrew Joseph Farnum (“Plaintiff”) appears to be seeking an order compelling Defendants Bigdeli D.D.S. Inc. dba Big Dental Group and Foruzan Bigdeli, D.D.S. (collectively, “Defendants”) to serve further responses to Plaintiff’s three sets of special interrogatories, an order compelling Defendants to produce documents, monetary sanctions against Defendants and their attorney of record, an issues conference, reconsideration of a July 2023 Order by Judge De La Cruz, and leave to amend. Plaintiff’s caption describes the motion as a motion for an issues conference with motion to compel further responses to special interrogatories, motion to compel production of discovery documents, and motion for sanctions. (Motion, Page 1.) Plaintiff contends he is presenting this application to seek the following relief: 1) issues conference; 2) motion to compel further responses to special interrogatories; 3) motion compelling production of discovery documents; 4) motion for leave to amend; and 5) monetary sanctions. (Motion, Declaration of Application Notice, Lines 10-23.) In the supporting memorandum, Plaintiff also requests a writ of review of the 2023 <i>ex parte</i> motion to enforce contempt. (Motion, 5:18-19.)

Plaintiff's proposed order address special interrogatories, sets 1, 2, and 3, insurance discovery, monetary sanctions, and leave to amend. (Motion, Proposed Order, Page 7.)

Plaintiff's additional declaration, numbered page 7 in the footer, also seeks reconsideration of the July 2023 ruling by Judge De La Cruz. (Motion, 7:16-17.)

Plaintiff did not cite to any legal authority to support a motion to compel further responses to special interrogatories, motion to compel production, motion for leave to amend, motion for reconsideration, or to support a writ review by this Court. Plaintiff has not shown Plaintiff's requests for further responses, sanctions, or reconsideration is timely. (Code Civ. Proc., §§ 1008 and 2030.300, subd. (c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410 [The 45-day limitation to compel further responses to a request for production is jurisdictional and if the moving party does not comply with the 45-day limitation, the Court is "without authority to rule on motions to compel other than to deny them."].) Plaintiff did not sufficiently describe the July 2023 Order by Judge De La Cruz, or submit a declaration that complies with CCP section 1008. Plaintiff did not submit a separate statement in support of a motion to compel further responses and did not show any attempt to meet and confer before bringing this motion. (Code Civ. Proc., § 2030.300, subd. (b.) Plaintiff did not show Dr. Bigdeli or Big Dental Group failed to comply with a statement of compliance in response to any request for production. (Code Civ. Proc., § 2031.320.) As for a motion for leave to amend, Plaintiff did not comply with CRC Rule 3.1324.

Accordingly, Plaintiff's motion is denied.

No sanctions are warranted at this time.

The Court once again reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (*Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines "parties" as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Plaintiff is a self-represented litigant does not relieve him of the requirements, law, and procedures applied

		to all parties who appear in this court. Self-represented litigants are “held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Defendant shall give notice.
8	First Foundation Inc. vs. Keller 2025-01493220	Motion to Compel Productions Unless parties call to have matters taken off calendar, the court will hear from parties.
9	Lipton vs. Ooblix, Inc. 2025-01458340	Motion to Be Relieved as Counsel of Record The unopposed motion by Callahan & Blaine, PC (“Counsel”), attorney of record for Defendant Oblix Lending Group LLC (“Oblix Lending”) for an order permitting counsel to be relieved as attorney of record for Oblix Lending in this action is GRANTED. Counsel complied with CRC Rule 3.1362. Upon the signing of the revised order, Counsel shall serve the signed revised order on Oblix Lending and all parties who have appeared. The revised order granting relief shall be effective when proof of service of the signed revised order (including the future OSC for representation date of August 31, 2026 at 9:00 a.m..) on Oblix Lending and all parties is filed with the Court. The Court reminds Oblix Lending that an entity must be represented in court by a licensed attorney. It cannot represent itself in court, either in pro per or through an officer or agent who is not an attorney. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898.) OSC for representation date of August 31, 2026 at 9:00 a.m.. Counsel shall give notice of the ruling.
10	Lomeli de Facio vs. Sodexo, Inc.	Matter Off Calendar

	2020-01162342	
11	Marquez vs. Velco Tool & Die, Inc. 2024-01415568	Motion for Summary Judgment and/or Adjudication Off Calendar
12	MyDormDoc, LLC. vs. 1981 Distribution Inc 2025-01532955	1. Demurrer to Amended Complaint 2. Motion to Strike Portions Of Complaint 3. Case Management Conference Continued to 11/16/2026
13	Nour vs. Al-Khanji 2024-01373153	Motion to Be Relieved as Counsel of Record Motion to Be Relieved as Counsel of Record On the motions of the Law Offices of Mark Martinez, by Mark Martinez, counsel of record for defendants (1) Mark El Khanji and (2) Zeina Sous for orders relieving it as counsel for each of Defendants, the court notes there are still no proofs of service on plaintiff Hansaa Noor in the file. Nor was a notice of continuance filed. The hearing is continued one last time to August 31, 2026 at 9:00 1:30 p.m. for counsel to serve the motion papers on Plaintiff and file a proof of service – and to also serve notice of continuance on Plaintiff and Defendants and file that proof of service. Moving party to give notice.
14	Perez vs. General Motors LLC 2025-01460247	Motion to Compel Production The motion by Defendant General Motors LLC (“Defendant”) for an order for compliance requiring Plaintiffs Rigoberto Leon Perez and Angelina Cabanas Ramirez (collectively, “Plaintiffs”) to appear and comply with the initial depositions of Plaintiffs under Code of Civil Procedure section 871.26, subdivision (c)(1) is GRANTED.

“Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents:...The plaintiff.” (Code Civ. Proc., § 871.26, subd. (c)(1).)

“Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:...A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff’s attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).” (Code Civ. Proc., § 871.26, subd. (j)(2).)

Plaintiffs do not dispute that they are required to appear for their deposition pursuant to CCP section 871.26, subdivision (c)(1). Although Plaintiffs request a continuance due to a breakdown in communication between Plaintiffs and their attorneys of record, Plaintiffs have not shown a continuance would resolve the issue of noncompliance with their depositions. Defendant initially noticed Plaintiffs’ depositions for August 29, 2025. (Lasater Decl., ¶ 5, Exhibit B-1 and Exhibit B-2.) After Plaintiffs objected to the deposition notice, Defendant rescheduled the depositions to be taken on October 6, 2025. (*Id.*, ¶¶ 6 and 7, Exhibits C-1, C-2, D-1, and D-2.) Plaintiffs once again objected to the amended deposition notices and have not appeared nor provided alternative dates for their depositions. (*Id.*, ¶¶ 8 and 9, Exhibits E-1 and E-2.)

There is no dispute Defendant filed its responsive pleading on 6/9/2025 or that the 120 days to take the deposition expired on 10/7/2025. (Lasater Decl., ¶¶ 3 and 10.)

Defendant’s motion is granted. Plaintiffs are ordered to make themselves available for deposition within 60 days of the court’s entry of this order.

Plaintiffs’ counsel showed good cause for Plaintiffs not complying with this subdivision. (Opposition, 2:25-28; Smith Decl., ¶ 5.) No sanctions are warranted at this time.

Defendant shall give notice.

15	Torres vs. Alcala 2023-01324923	Motions to Compel Further Responses to Special Interrogatories Court will hear argument from the parties.